

22AHCV00029 22AHCV00029

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-07

Motion: MOTION TO QUASH SERVICE OF SUMMONS

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Case Number: 22AHCV00029 Hearing Date: August 7, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

XIAO FAN
PENG,

Plaintiff(s),

vs.

YUN
XIANG TSENG, et al.,

Defendant(s).

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CASE NO.: 22AHCV00029

[TENTATIVE]

ORDER RE: MOTION TO QUASH SERVICE OF SUMMONS

Dept.

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8:30

a.m.

August 7,

2026

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I.

INTRODUCTION

On July 6, 2026, defendant Anna Grace

("Defendant") filed this motion to quash service of summons. Defendant argues that Plaintiff failed to demonstrate that she exercised "reasonable diligence" in attempting service of process by other means before filing an application for publication.

II.

LEGAL

STANDARD

Code of Civil Procedure section 415.50
states, in relevant part:

(a) A summons may be served by
publication if upon affidavit it appears to the satisfaction of the court in
which the action is pending that the party to be served cannot with reasonable
diligence be served in another manner specified in this article and that []:

(1) A cause of action exists against
the party upon whom service is to be made or he or she is a necessary or proper
party to the action.

When a defendant moves to quash service
of summons, the burden of proving the existence of jurisdiction by a
preponderance of the admissible evidence rests on the plaintiff. (Summers v.
McClanahan (2006) 140 Cal.App.4th 403, 413; Floveyor Int'l, Ltd. v.
Superior Court (1997) 59 Cal.App.4th 789, 793.) Compliance with the
statutory procedures for service of process is essential to establish personal
jurisdiction, and defects in service render any resulting default or judgment
void, not merely voidable. (Dill v. Berquist Construction Co. (1994) 24
Cal.App.4th 1426, 1441.)

III.

DISCUSSION

Defendant argues that Plaintiff's
application for publication, which was approved on August 3, 2022 by the
Honorable Colin P. Leis, should not have been approved because it was based on
an identical application that Judge Leis previously denied on June 27, 2022,
and there was no "renewed judicial evaluation of whether reasonable diligence
had, by then, actually been exercised." (Motion, p. 7.) Defendant contends that
the declaration executed by process server Gregory Lacap on March 18, 2022, is
insufficient because it merely states that he "conducted a records search on
the Name [sic] 'Anna Grace'" and "crossed referenced [sic] the last known
address and [sic] yielded no results on subject found." Defendant further
argues that no reasonable diligence was used to serve her by means other than
personal service because Plaintiff only attempted to serve her by mail in June
of 2022 at addresses that she already knew were inaccurate.

In opposition, Plaintiff argues that several attempts to effect personal service, combined with a records search and service by mailing to two different addresses is sufficient to demonstrate "reasonable diligence." Plaintiff points out that Defendant's sudden availability "years later on the eve of trial" is suspect and should be viewed as evidence that Defendant was evading service, necessitating the use of service by publication. (Opp., p. 10.) Plaintiff also suggests that the filing of the Second Amended Complaint was dispositive in Judge Leis' decision to grant the second application for publication because it "provided the Court with more of a complete basis to assess the necessity of [Defendant] as a party." (Opp., p. 9.) This statement is incorrect because the Court has reviewed the complaints operative at the time each application was submitted and the allegations against Defendant did not change to deem Defendant more or less of a "necessary party." The Court also notes that Plaintiff incorrectly states that the applications were reviewed by two different judicial officers. (Opp., p. 10.)

Defendant did not file a reply brief and the Court notes that Defendant offered no declaration in support of her moving papers explaining where she was located or whether and how she could have been located during the period of service using means other than those employed by Plaintiff. Defendant also does not explain how she first learned of the lawsuit or how she was contacted by defense counsel. There is no evidence in the record showing why the first application was denied by Judge Leis and the Court declines to speculate as to the reasoning behind the decisions of the previous judicial officer assigned to this case.

IV.

CONCLUSION

Accordingly, the motion to quash is
DENIED.

Dated
this 7th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.